

24NWCV04700 24NWCV04700

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-07-30

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Case Number: 24NWCV04700 Hearing Date: July 30, 2026 Dept: C

VERONICA PEREZ vs GOMEZ

FAMILY TRUST, et al., Case No. 24NWCV04700

This premises liability

action was filed on December 2, 2024. Trial

is currently set for October 12, 2026. Defendants

GOMEZ FAMILY TRUST, MANUEL GOMEZ and IRMA GOMEZ apply ex parte for an order continuing

trial so that its motion for summary judgment, scheduled for hearing on

September 17, 2026, may be heard no later than 30 days before trial. Defendant personally served its motion for summary judgment on June 22, 2026. Notice of a

motion for summary judgment shall be served at least 81 days before the

hearing, and the motion shall be heard no more than 30 days before trial. (CCP

§437c, subd. (2) and (3).) Based upon the current trial date, the last day to personally

serve a motion for summary judgment was June 23, 2026. By personally

serving the motion on June 22, 2026, Defendant provided timely notice. A

court may not refuse to hear a summary judgment motion filed within the time

limits of Code Civ. Proc. § 437c. (Cole v. Superior Court (2022) 87 Cal.App.5th

84; Sentry Ins. Co. v. Superior Court (1989) 207 Cal.App.3d 526.) The ex parte

application is GRANTED. Trial is

ADVANCED from October 12, 2026 to today and CONTINUED to October 21, 2026 at

10:00 a.m. in Dept. SE-C. A Final Status Conference is set for October 7,

2026 at 10:00 a.m. in Dept. SE-C. All pretrial deadlines shall correspond

with the new trial date. Defendant's Motion to Continue Trial is ADVANCED

from August 21, 2026 to today and deemed MOOT.

Moving party to give notice.